



SPONSOR: Sen. Mantzavinos & Rep. Burns
Sens. Cruce, Hoffner, Huxtable, Lockman, Townsend,
Walsh; Reps. Chukwuocha, Harris, Minor-Brown,
Morrison, Romer, Snyder-Hall, K. Williams

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 229

AN ACT TO AMEND TITLE 9 OF THE DELAWARE CODE RELATING TO THE NEW CASTLE COUNTY OFFICE OF FINANCE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Chapter 83, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline:

§ 8304A. Subpoena power.

(a) For purposes of this section, "county authority" means the Chief Financial Officer of the Office of Finance, the Director of the Department of Finance of Kent County, or the Finance Director of Sussex County.

(b) Each board of assessment or Department or Office of Finance shall have the power to subpoena witnesses, compel their attendance and testimony, administer oaths and affirmations, take evidence, and require by subpoena the production of books, papers, records, memoranda, or other evidence bearing upon the correctness of any assessed value of real property whenever the board of assessment, Department, Office of Finance, or an appealing property owner relies upon income or cost comparison approaches to determine or contest the assessed value of that real property.

(c) A subpoena issued under this section is effective throughout this State and may be enforced in other states or countries through available legal means.

(d) Service of a subpoena issued under this section may be made by the county authority, or other staff designated by the county authority, for the purpose of serving a subpoena as follows:

(1) Where the person served is an individual, by any of the following:

a. Serving the person to whom it is addressed personally.

b. Leaving it at the person's usual place of abode with an individual of suitable age and discretion residing therein.

c. Sending it by certified mail to the last known address of the person to whom the subpoena is addressed.

(2) Where the person served is a corporate or other entity, by any of the following:

a. Serving the registered agent personally or by certified mail.

23 b. Serving any individual authorized to accept service on behalf of the entity personally at the
24 individual's usual place of business, the place of business of the entity, or by certified mail.

25 (e) If a properly served recipient of a subpoena fails or refuses to respond, the Superior Court may, upon
26 application of the county authority, issue an order requiring the recipient of the subpoena to appear before the county
27 authority in response to the subpoena or produce books, papers, records, memoranda, or other evidence. Failure to obey
28 such an order may be punished by the court as a contempt thereof.

29 (f) If any person willfully refuses to make available books, papers, records, memoranda, or other evidence for
30 examination by the county authority as required by this section, of the county authority's representative, or willfully refuses
31 to attend and testify as required by this section, the county authority may apply to a judge of Superior Court for an order
32 directing such person to comply with the county authority's request for books, papers, records, memoranda, or other
33 evidence for examination by the county authority, or for the person's attendance and testimony. If the books, papers,
34 records, memoranda, or other evidence required by the county authority are in the custody of a corporation, the order of the
35 Court may be directed to any principal officer of such corporation. If a person fails or refuses to obey such an order, such
36 person shall be guilty of contempt of court. If a person who is a Delaware corporation or other Delaware business entity
37 refuses to obey such an order, such action is an abuse and a misuse of corporate powers under § 284 of Title 8.

SYNOPSIS

This Act defines, for purposes of this section, "county authority" as the Chief Financial Officer of the Office of Finance, the Director of the Department of Finance of Kent County, and the Finance Director of Sussex County.

This Act expressly authorizes the county authority to compel the production of testimony and documentary evidence whenever a county relies upon, or defends its reliance upon, the income approach or cost comparison approaches to assess the fair market value of real property. This Act permits the enforcement of subpoenas by order of the Superior Court and permits use of the court's contempt powers. This Act equates a corporate or business entity's non-compliance with an order enforcing a subpoena under this section to abuse or misuse of corporate powers sufficient to permit the Attorney General to commence proceedings to revoke a corporate charter pursuant to Title 8 of the Delaware Code.

Author: Senator Mantzavinos